

LEGAL ANGLE

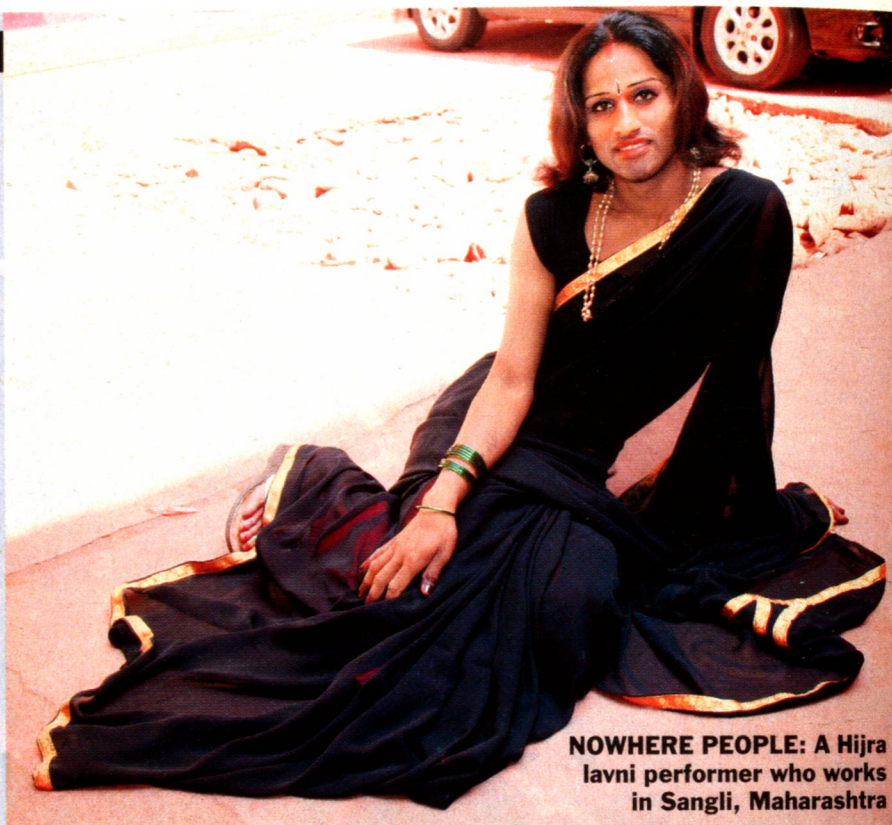
WHAT SECTION 377 OF IPC SAYS:

Whoever voluntarily has carnal intercourse against the order of nature, with any man, woman or animal, shall be punishable with imprisonment for life or with imprisonment of either description for a term which may extend to 10 years and shall also be liable to fine.

HISTORY: Section 377 was drafted in 1860 by Lord Macaulay. Britain repealed it in 1967 by decriminalising homosexuality in England.

INDIA'S ROLE: Has rejected countless pleas to repeal Section 377 citing reasons of "public morality".

INJUSTICES: Besides criminalising the lives of sexual minorities, the law has neither any provision for same-sex marriage nor for adoption of children. They are the most affected with loss of property, education and jobs.



NOWHERE PEOPLE: A Hijra lavni performer who works in Sangli, Maharashtra

WITH NEARLY 20-50 MILLION SEXUAL MINORITIES IN THE COUNTRY, THE GOVERNMENT WILL HAVE TO TAKE HEED OF THESE IGNORED VOICES.

recourse, the groups have done what all marginalised people have done historically. They have formed self-help groups that fight for their rights. Most people from such communities are well networked with NGOs that operate at the district level and have done pioneering work in creating AIDS awareness and have a hold among sex workers as well as among sexual minorities.

The law states that homosexuality is illegal, and yet over 20 per cent of the target groups for the health department focus on AIDS are sexual minorities. The case is pretty much the same with sex workers. On one hand the health department has identified them as the highest risk group and continues to work with them, while the Prevention of Immoral Trafficking Act (PITA) works in contradiction. "PITA is supposed to prevent the exploitation of sex workers; instead it prosecutes and punishes the victims while the exploiters and abusers get away," explains Dr Rajshree Kamath, a pioneer in AIDS awareness and prevention in

Maharashtra. The common nature of abuse and exploitation has led to the formation of close ties between women sex workers and sexual minority sex workers, who have garnered forces and now stand with each other in their fight against society. "AIDS and HIV is a double-edged sword because the funding agencies specify that the body receiving funds must not lobby for a change in the existing laws (specifically Article 377)," says Kamath.

The greatest change has, however, come about from within the community. In small towns like Shimoga, for instance, where the numbers are just over 350 people, the community and crisis centres have provided a strong base for the groups. "The police always harass us, even if we are shopping we can be picked up for immoral trafficking," says Sadiq. But now things have changed to such an extent that help reaches the person in question even before he or she reaches the police station. "I get a call within minutes of a person being arrested. After that, we ensure that their rights are protected

just like that of any other citizen of free India," says B.T. Venkatesh, a human rights lawyer.

With sexual minorities numbering nearly 20-50 million in India, sooner or later, the government will have to take heed of these unheard and ignored voices. "Legal reform alone is not enough, social reform is more important," stress human rights activists across the country. The activists thronged the market place in Hubli, and what was surprising was that unlike in big cities, the man on the street stopped, listened and even asked for pamphlets to read about their problems, and what's more, turned up in large numbers (nearly 2,000 people from the mainstream) to listen to their testimonies and watch the dance programmes organised by the groups.

Surely, it is only a matter of time before terminology and definitions and laws change. Till then, sexual minorities like all other marginalised communities will continue to form their own self-help groups and learn to fend for themselves.